

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 25, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV426343	American Express National Bank vs Anil Francis	Motion for Entry of Judgment Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	24CV445359	Brittany Dowdy vs Avtar Judge et al	Motion to Strike Scroll down to Line 2 for Tentative Ruling.
<u>LINE 3</u>	24CV452583	Christopher Newman vs City of San Jose California et al.	Motion for Summary Judgment/Adjudication Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	24CV453450	Christopher Love vs Ford Motor Company et al.	Motion for Summary Judgment/Adjudication Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV465829	Crown Asset Management, LLC vs Jerry Nguyen	Motion to Quash On October 27, 2025, the moving party/defendant Jerry Nguyen filed a motion to quash service of summons. However, the motion is procedurally deficient as the defendant did not file any proof of service of this motion upon the plaintiff. Proof of service for a motion to quash is required under Code of Civil Procedure sections 418.10, 1005(a), and California Rule of Court, rule 3.510. Based on the foregoing, the defendant's motion is DENIED without prejudice.
<u>LINES 6-7</u>	25CV469820	Ying Wang vs The John Stewart Company et al.	Motion to Compel (Line # 6) & Motion for Protective Order (Line # 7) Scroll down to Lines 6-7 for Tentative Ruling.
<u>LINE 8</u>	25CV470037	Diana Guadalupe Chipana vs Jaspinder Grewal et al.	Demurrer Scroll down to Line 8 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 9</u>	25CV471673	KPFF, Inc., dba DPFF Consulting Engineers vs Kevin Clark et al.	Motion Order OFF CALENDAR. Moving party/KPFF, Inc. dba DPFF Consulting Engineers filed an application for an order to serve its petition pursuant to Code of Civil Procedure section 1798.201 through the California Secretary of State that was GRANTED on June 23, 2026 by this Court. Plaintiff's requested order on unlawful use of personal identifying information was GRANTED on June 22, 2026 by the Honorable Franco. Plaintiff also filed an application for immediate adjudication of the petition on the merits under Civil Code section 1798.202 that was GRANTED on June 2, 2026 by the Honorable Franco. No other motion or application is pending in front of the Court.
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9:01 A.M.			
<u>LINE 1</u>	1999-7-CV-382244	First Select Corp vs Lopez Annette	Claim of Exemption Parties to appear.
<u>LINE 2</u>	19CV349609	Bh Financial Gorup, Llc vs Rocio Solorzano	Claim of Exemption Parties to appear.
<u>LINE 3</u>	23CV426238	Jaiden Holland vs Jennifer Chapman et al	Minor's Compromise Claim Parties to appear.
<u>LINE 4</u>	24CV443781	Demar, LLC vs Mike Mak	Order of Examination Parties to appear.

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9:00 A.M.

Calendar Lines # 1

Case Name American Express National Bank vs Anil Francis

Case No. 23CV426343

Motion for Entry of Judgment

I. BACKGROUND

This collections case stems from a non-payment of a credit card account. On November 17, 2023, Plaintiff American Express National Bank filed a Complaint against Defendant Anil Francis for the outstanding debt and alleged damages in the amount of \$33,200.07.

On April 2, 2024, the parties filed a Notice of Settlement and Stipulation for Entry of Judgment Pending Performance pursuant to Code of Civil Procedure section 664.6. (Declaration of Ren, p. 2; Exhibit A). Defendant Francis signed the agreement on January 1, 2024 and the plaintiff signed the agreement on April 1, 2024. (*Id*). The settlement agreement set forth a payment plan for a total amount of \$24,120.00 that was to be paid by December 11, 2025. (*Id*). Defendant agreed to monthly payments starting of \$1,005.00 that was to be paid on or before January 11, 2024 and continuing thereafter through December 11, 2025. (*Id*). The parties stipulated that in the event that the defendant failed to make the scheduled payments, the defendant would be in default. (*Id*). The agreement expressly stated that the plaintiff could seek a motion or ex parte application to enforce the agreement for the balance and costs, and less payments made. (Exhibit A).

After the settlement agreement was executed, Defendant Francis started making scheduled payments. However, Defendant Francis failed to make payments for the month of July 11, 2024 and each month thereafter. (Declaration of Ren, p. 2). The last payment received was on June 11, 2024. (*Id*).

On September 23, 2025, Plaintiff filed this motion for entry of judgment. The motion was accompanied by a proof of service indicating mail service to the plaintiff. Plaintiff acknowledges credit in the amount of \$7,083.84. Defendant seeks \$569.22 in costs for seeking this entry of judgment. (Memorandum of Costs).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 10 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: Plaintiff's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Zhen Ren in support of plaintiff's motion and attached Exhibit A (totaling 8 pages); memorandum of cost (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Code of Civil Procedure section 664.6 provides in relevant part:

“(a) If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1) The party.

(2) An attorney who represents the party.

(3) If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits."

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). To enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797-98).

Enforcement under section 664.6 "require[s] the signatures of the parties seeking to enforce the agreement under [Code of Civil Procedure] section 664.6 and against whom the agreement is sought to be enforced." (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985). Section 664.6's "requirement of a 'writing signed by the parties' must be read to apply to all parties bringing the section 664.6 motion and against whom the motion is directed." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 306; see *Sully-Miller Contracting Co. v. Gledson/Cashman Const., Inc.* (2002) 103 Cal.App.4th 30, 35-37 ["A written settlement agreement is not enforceable under section 664.6 unless it is signed by all of the parties to the agreement, not merely the parties against whom the agreement is sought to be enforced."]). "A procedure in which a settlement is evidenced by one writing signed by both sides minimizes the possibility of ... dispute[s] and legitimizes the summary nature of the section 664.6 procedure." (*Robertson v. Chen* (1996) 44 Cal.App.4th 1290, 1293).

III. ANALYSIS

Here, all requirements to enforce the settlement have been met. There was a meeting of the minds on all material terms, including the amount, scope and payment terms, including a monthly payment scheduled of the settlement. The parties signed and filed the stipulation containing all of the material terms. The stipulation and agreement is signed by all parties. Thus, the Court grants the motion to enforce and will enter a judgment amount of \$26,685.45 against Defendant Francis. The judgment amount is calculated as follows: total amount \$33,200.07 less the credited sum of \$7,083.84 plus \$569.22 in costs.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter a judgment under Code of Civil Procedure section 664.6. The judgment amount of \$26,685.45 is entered against Defendant Francis.

The Court will prepare the formal Order.

Calendar Lines # 2
Case Name Brittany Dowdy vs Avtar Judge et al.
Case No. 24CV445359
Motion to Strike Before the court is defendants’ motion to strike portions of plaintiff’s complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> On or about August 19, 2022, plaintiff Brittany Dowdy (“Plaintiff”) checked into defendant Quality Inn & Suites South San Jose/ Morgan Hill (“Quality Inn”) located at 16525 Condit Road in Morgan Hill (“Subject Hotel”). (Complaint, ¶15). On or about August 20, 2022, Plaintiff awoke with severe itching and discovered numerous bed bug bites across her body. (Complaint, ¶16). Plaintiff inspected her bed and discovered specks of blood on the mattress. (Complaint, ¶17). Plaintiff reported her injuries to the Subject Hotel management, but the Subject Hotel manager was dismissive. (Complaint, ¶19). On August 20, 2022, Plaintiff checked out of the Subject Hotel. (Complaint, ¶18). On or about August 29, 2022, Plaintiff sought medical care and was diagnosed with infected bedbug bites. (Complaint, ¶20). Plaintiff has physical and emotional scars as a result of the bedbug bites. (Complaint, ¶21). Defendants deliberately and recklessly chose not to inspect or otherwise ensure Plaintiff’s room was free of bedbugs immediately before Plaintiff’s stay at the Subject Hotel, willfully disregarding knowledge of a prior bedbug infestation. (Complaint, ¶23). Defendants failed to eradicate a prior bedbug infestation of Plaintiff’s room despite knowledge of a prior infestation in that room. (Complaint, ¶¶24 – 25). On August 16, 2024, Plaintiff filed a complaint against defendants Choice Hotels International, Inc. (“CHI”); Quality Inn; Sunbake, LLC (“Sunbake”), and Avtar Judge (“Judge”) asserting causes of action for: (1) Battery (2) Negligence (3) Intentional Infliction of Emotional Distress (4) Fraudulent Concealment (5) Private Nuisance (6) Public Nuisance (7) Breach of Contract On June 10, 2025, defendants CHI, Quality Inn, Sunbake, and Judge (“Moving Defendants”) filed the motion now before the court, a motion to strike the request for attorney’s fees and punitive damage allegations from Plaintiff’s Complaint. II. <u>LEGAL STANDARD</u> A. PROCEDURAL REQUIREMENTS Code of Civil Procedure section 435.5(a) requires that before filing a motion to strike, the moving party shall meet and confer in person or by telephone with the party who has filed the pleading subject to the motion to strike and file a declaration detailing their meet and confer efforts. However, an insufficient meet and confer process is not grounds to grant or deny a motion to strike. (Code Civ. Proc., § 435.5(a)(4)). Code of Civil Procedure section 435(b) sets forth that a party may bring a motion to strike within the time allowed to respond to a pleading. (See also, Cal. Rule of Court, rule 3.1322(b)). A motion to strike all or part of an answer

to a complaint must therefore be brought within 10 days. (See Code Civ. Proc. § 430.40(b); Cal. Rules of Court 3.1322(b)). The Court has the power, however, to strike out all or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court on its own motion. (Code Civ. Proc. § 436(b)). The Court therefore has the authority to consider the matter at any time, even after the statutory deadline has passed. *CPF Agency Corp v. R&S Towing* (2005) 132 Cal.App.4th 1014, 1021 overruled on other grounds in *Dan's City Used Cars Inc. v. Pelkey* (2013) 569 U.S. 251.

B. REQUEST FOR JUDICIAL NOTICE AND EVIDENTIARY OBJECTION

Pursuant to Code of Civil Procedure section 436(a), the court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. *Id.*, § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. *Id.* § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. *Id.* § 437. "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768). A motion to strike can be used where the complaint or other pleading has not been drawn or filed in conformity with applicable rules or court orders. (Code Civ. Proc., § 436(b)). This provision is for "the striking of a pleading due to improprieties in its form or in the procedures pursuant to which it was filed." (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 (emphasis in original)).

III. ANALYSIS

A. ATTORNEY'S FEES

Moving Defendants' request the court strike Plaintiff's prayer for attorney's fees from the Complaint.

"Under California law, 'each party to a lawsuit must pay its own attorney fees unless a contract or statute or other law authorizes a fee award.'" (*Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc.* (2012) 211 Cal.App.4th 230, 237, 149 Cal.Rptr.3d 440; see Code Civ. Proc., § 1021). Thus, unless specifically provided by statute or agreement, attorney fees are not recoverable." (*K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1420–1421).

Plaintiff has not identified in the Complaint any contractual or statutory basis for seeking attorney's fees. Plaintiff does not address this argument in opposition. Accordingly, Moving Defendants' motion to strike the request for attorney's fees from the prayer for relief in Plaintiff's complaint is GRANTED.

B. PUNITIVE DAMAGES

Moving Defendants' motion seeks also to strike Plaintiff's allegations regarding punitive damages. Pursuant to Civil Code section 3294, punitive damages may be recovered "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice."

In *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 26 (*Searle*), the court wrote, "In California the award of damages by way of example or punishment is controlled by Civil Code section 3294, which authorizes that kind of award against a tortfeasor who has been guilty of 'oppression, fraud or malice, express or implied.'"

Notwithstanding relaxed pleading criteria, certain tortious injuries demand firm allegations. Vague, conclusory allegations of fraud or falsity may not be rescued by the rule of liberal construction. When the plaintiff alleges an intentional wrong, a prayer for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure. When nondeliberate injury

is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. (*Searle, supra*, 49 Cal.App.3d at p. 29; internal citations omitted).

Plaintiff seeks punitive damages in connection with her second cause of action for negligence, a non-deliberate injury. (See Complaint, ¶79). Using the same allegations, Plaintiff also seeks punitive damages in connection with the first (battery), third (intentional infliction of emotional distress), and fourth (fraudulent concealment) causes of action. (See Complaint, ¶¶62, 90, and 110). It is these portions of the complaint that Moving Defendants move to strike along with the prayer for punitive damages.

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code §3294, subd. (c)(1)). To plead a “willful and conscious disregard of the rights of others,” a plaintiff need only allege, “that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211 (*Lackner*)).

“‘Despicable conduct’ has been described as conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Citation.] Such conduct has been described as ‘[having] the character of outrage frequently associated with crime.’” (*American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050). “[I]n cases involving conduct performed without intent to harm, a finding of ‘malice’ for punitive purposes requires proof by clear and convincing evidence that defendant’s tortious wrong amounted to ‘despicable conduct’ and that such despicable conduct was carried on with a ‘willful and conscious disregard’ of the rights or safety of others.” (See *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704 (*College Hospital*)).

“Punitive damages are appropriate if the defendant’s acts are reprehensible, fraudulent or in blatant violation of law or policy. The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (*Lackner, supra*, 135 Cal.App.4th at p. 1210). In *Lackner*, the court held, as a matter of law, that a snowboarder who struck a skier while racing through a rest area did not engage in despicable conduct.

Applying these criteria, we find the evidence is insufficient as a matter of law to show that North's conduct was despicable and that he acted with base or evil intent. It is undisputed that North did not intentionally hit Lackner and that when he saw her, he desperately attempted to avoid hitting her but lost control and was unable to do so. While North was traveling at a high rate of speed, Mammoth did not prohibit racing on an advanced run and no signs were posted warning skiers to slow down. Skiing conditions were very good at the time. The snow was good, the visibility was excellent, and the run was largely deserted. Given North's level of expertise and the conditions on the mountain, his speed alone was not despicable. While his decision to race through the rest area may have been reckless, as a practical or technical matter, he was not out of control until he saw Lackner and attempted to avoid hitting her. His error was in snowboarding at a high rate of speed without looking in the direction he was heading. However, when he did see her, he attempted to avoid hitting her, which is entirely inconsistent with evil or criminal intent. (*Id.* at p. 1213).

Here, Plaintiff has alleged that defendants were aware of a prior bedbug infestation in the very room Plaintiff stayed but placed Plaintiff in that room despite that awareness. Under such alleged circumstances, the court is of the opinion that Plaintiff has sufficiently alleged a willful and conscious disregard of Plaintiff’s safety. The court is also of the opinion that reasonable minds may differ as to whether such conduct be viewed as despicable, i.e., loathsome/ looked

down upon and despised by ordinary decent people. Certainly, at the pleading stage and without a fully developed set of facts, the court cannot conclude the alleged conduct would not amount to despicable conduct as a matter of law.

In reply, defendants CHI and Sunbake argue Plaintiff has not sufficiently alleged punitive damages against them as corporate entities pursuant to Civil Code section 3924, subdivision (b). In 1980, the California Legislature: added subdivision (b) to section 3294. (Stats. 1980, ch. 1242, § 1, p. 4217). Following subsequent minor amendments, the statute now states in pertinent part:

"An employer shall not be liable for [punitive] damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (§ 3294, subd. (b), italics added). The drafters' goals were to avoid imposing punitive damages on employers who were merely negligent or reckless and to distinguish ordinary respondeat superior liability from corporate liability for punitive damages. (See *Weeks v. Baker & McKenzie* (1998) 63 Cal. App. 4th 1128, 1150-1151 [74 Cal. Rptr. 2d 510]; see also *College Hospital, Inc. v. Superior Court* (1994) 8 Cal. 4th 704, 712-713 [34 Cal. Rptr. 2d 898, 882 P.2d 894] [noting that, after 1979, the Legislature limited circumstances under which an employer could be held liable for punitive damages]). Section 3294 is no longer silent on who may be responsible for imputing punitive damages to a corporate employer. ***For corporate punitive damages liability, section 3294, subdivision (b), requires that the wrongful act giving rise to the exemplary damages be committed by an "officer, director, or managing agent."*** (*White v. Ultramar* (1999) 21 Cal.4th 563, 571-572; emphasis added).

Defendants CHI and Sunbake tacitly acknowledge the general allegation found at paragraph 47 of the Plaintiff's complaint that "An officer, director, or managing agent of Defendants ... authorized or ratified the fraudulent conduct of the Subject Hotel employees by failing to remedy prior bedbug infestations and deliberately concealing the fact of their presence in the Hotel," but contend this is insufficient because the allegation does not "specifically identif[y] who ratified the alleged conduct of the employees of Defendants [CHI] and/or [Sunbake]."¹ Defendants CHI and Sunbake cite to *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 167, but the opinion does not hold that a plaintiff must specifically identify the officer, director, or managing agent by name.

In reply, Moving Defendants argue for the first time that the punitive damage allegations are not specific as to each defendant. The court declines to address this particular argument since it appears to be new argument raised for the first time on reply. The court may refuse to consider arguments first raised in reply papers since the opposing party has not been given the opportunity to address them. (See, e.g., *REO Broadcasting Consultants v. Martin* (1999) 69 Cal. App. 4th 489, 500).

IV. CONCLUSION

Based on the foregoing, the defendant's motion to strike portions of Plaintiff's Complaint is GRANTED in part, and DENIED in part as follows: Defendant's motion to strike Plaintiff's prayer for attorney's fees from the Complaint is GRANTED. Defendant's motion to strike paragraphs 62, 79, 90, and 110, and the request for punitive damages from the prayer for relief in Plaintiff's Complaint is DENIED.

The Court will prepare the formal Order.

¹ See page 5, lines 6 – 7, of the Reply to Opposition to Motion to Strike Portions of Plaintiff's Complaint.

Calendar Line # 3
Case Name Christopher Newman vs City of San Jose California et al
Case No. 24CV452583
Motion for Summary Judgment/Adjudication Before the court is defendants Steven Dudock and Mary J. Freeman’s motion for summary judgment. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Defendants Steven Dudock (“Dudock”) and Mary Joan Freeman (“Freeman”) owned, operated, managed, maintained, controlled and/or were in possession and control of residential property located at 2533 Richland Avenue in San Jose. (Complaint, ¶4). On or about December 8, 2023, plaintiff Christopher Newman (“Plaintiff”) was lawfully present on Richland Avenue in San Jose. (Complaint, ¶5). While walking on a section of pavement controlled by defendants, Plaintiff was injured due to a defect in the pavement. (<i>Id.</i>). Defendant city of San Jose (“City”) owns, operates, manages, controls, services, and supervises the public sidewalk where the accident giving rise to this complaint occurred. (Complaint, ¶3). As a proximate result of defendants’ negligence, Plaintiff was hurt and injured. (Complaint, ¶8). On November 25, 2024, Plaintiff filed a complaint against defendants City, Dudock, and Freeman asserting a single cause of action for personal injury (negligence). On January 14, 2025, defendants Dudock and Freeman filed an answer to Plaintiff’s complaint. On February 4, 2025, defendant City filed its answer to Plaintiff’s complaint. On March 23, 2026, defendants Dudock and Freeman filed the motion now before the court, a motion for summary judgment of Plaintiff’s complaint, originally set for hearing on November 19, 2026. On March 25, 2026, the court issued an order advancing the hearing on defendants Dudock and Freeman’s motion for summary judgment to June 25, 2026. <u>II. LEGAL STANDARD</u> The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (<i>Hinesley v. Oakshade Town Center</i> (2005) 135 Cal.App.4th 289, 294). “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (<i>Scalf v. D. B. Log Homes, Inc.</i> (2005) 128 Cal.App.4th 1510, 1519). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See <i>Id.</i>; see also <i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (<i>Aguilar, supra</i>, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); <i>Villa v. McFarren</i> (1995) 35 Cal.App.4th 733, 741). “A party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary

judgment.” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted]). Code of Civil Procedure section 437c(t): “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that *does not completely dispose* of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t).

Pursuant to Code of Civil Procedure section 437c(p)(1), the plaintiff moving for summary judgment must satisfy the initial burden of proof by presenting proving each element of a cause of action. In reviewing the motion, courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389; *Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99). Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1)). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166).

A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*). “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

Code of Civil Procedure section 457c(c): “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119). “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82). If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544).

III. ANALYSIS

Defendants Dudock and Freeman move for summary judgment by relying upon the “trivial defect” defense.² This defense is explained in *Ursino v. Big Boy Restaurants of America* (1987) 192 Cal.App.3d 394, 398 (*Ursino*), where

² In *Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927, the court explained, “Courts have referred to this simple principle as the ‘trivial defect defense,’ although it is not an affirmative defense but rather an aspect of

the court concluded, “persons who maintain walkways, whether public or private, are not required to maintain them in an absolutely perfect condition. The duty of care imposed on a property owner, even one with actual notice, does not require the repair of minor defects.” In *Ursino*, a 72-year old woman tripped on a raised edge of a section of defendant’s sidewalk and fell. The parties stipulated to a number of facts, one of which was that “the edge of the cement section in question was raised no higher than three-fourths of an inch.” (*Ursino, supra*, 192 Cal.App.3d at p. 396). The trial court granted summary judgment in defendant’s favor on the basis that the affirmative defense of “trivial defect” applied as a matter of law. The appellate court affirmed. The appellate court first determined that the “trivial defect” defense, which historically applied in actions against public entities, also applied to nongovernmental defendants. Next, the *Ursino* court explained what a trial court should consider in determining whether the defect is, in fact, “trivial.”

When a court determines whether a given defect is trivial, as a matter of law, the court should not rely merely upon the size of the depression. While size may be one of the most relevant factors to the decision, it is not always the sole criterion. Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate. (*Id.* at p. 397; punctuation omitted).

Some of those other circumstances would include, “lighting, debris, or a history of other similar injuries.” (*Id.*)

Aside from the size of the defect, the court should consider whether the walkway had any broken pieces or jagged edges and other conditions of the walkway surrounding the defect, such as whether there was debris, grease or water concealing the defect, as well as whether the accident occurred at night in an unlighted area or some other condition obstructed a pedestrian’s view of the defect. (*Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927).

The legal analysis involves several steps. First, the court reviews evidence regarding the type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff’s knowledge of the area. If these additional factors do not indicate the defect was sufficiently dangerous **to a reasonably careful person**, the court should deem the defect trivial as a matter of law and grant judgment for the landowner. [Citation.](*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567–568 (*Stathoulis*); emphasis added).³

In moving for summary judgment, defendants Dudock and Freeman proffer the following facts: According to Plaintiff, the incident occurred sometime after 12:00 – 12:15pm in the daytime, while Plaintiff was on his second loop running around the neighborhood.⁴ On the day of the incident, the weather conditions were sunny and clear.⁵

duty that plaintiff must plead and prove.” In either case, it is defendants Dudock and Freeman’s initial burden of either negating the element of duty or establishing the trivial defect defense.

³ The court declines to follow the Fifth Appellate District Court of Appeal’s decision in *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 114 and 119 – 120 which departs from the two-step approach taken by the Second Appellate District Court of Appeal in *Stathoulis* and also “part ways with the Court of Appeal precedent weighing a particular plaintiff’s familiarity with the defect as part of the dangerous condition analysis.” “[W]here there is more than one appellate court decision, and such appellate decisions are in conflict ..., the court exercising inferior jurisdiction can and must make a choice between the conflicting decisions.” (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456).

⁴ See Amended Separate Statement of Undisputed Material Facts in Support of Motion for Summary Judgment (“Defendants’ UMF”), Fact No. 5.

⁵ See Defendants’ UMF, Fact No. 6.

Plaintiff had lived in the vicinity where the incident occurred since August of 2022.⁶ Prior to the incident, Plaintiff had walked and jogged on the sidewalk where the incident happened approximately four times before.⁷

On the day of the incident, Plaintiff was doing his circuit loop around the neighborhood and passed over the sidewalk area one time on his jog before the incident occurred.⁸ When Plaintiff passed over the sidewalk area during his first loop, he had no difficulty doing so, and crossed over the portion of the sidewalk without incident.⁹ Before the date of the incident, while running the loop in the neighborhood, Plaintiff never noticed any uplift in the sidewalk where the incident occurred.¹⁰ Before the date of the incident, Plaintiff never fell on the sidewalk area while doing his circuit loop where the accident happened.¹¹

The green and purple bush referenced by Plaintiff in his deposition was not covering the sidewalk where the incident occurred.¹² The measurements taken by Plaintiff of the sidewalk area reflect the uplift or a height differential in the sidewalk where Plaintiff fell were all under an inch, and most were 3/4 of an inch.¹³

In opposition, Plaintiff proffers his own testimony to dispute defendants' assertion that the uplift or height differential of the defect where Plaintiff fell was at most 3/4 of an inch, but concedes the defect was under one inch.¹⁴ Under the two-step analysis identified in *Stathoulis*, above, the preliminary analysis reveals a trivial defect.

In further opposition, Plaintiff contends there are additional factors that contribute to the dangerousness of the defect. While Plaintiff acknowledges green and purple bushes were not covering the sidewalk precisely where the defect existed, Plaintiff nevertheless puts forth evidence and contends the bushes extended over approximately half the sidewalk and posed a visual obstruction of the defect.¹⁵ Additionally, Plaintiff proffers evidence that a City inspector identified three separate locations at defendant Dudock and Freeman's property requiring grinding.¹⁶ Plaintiff contends such "back-to-back" defects are an aggravating factor when determining whether a defect is trivial. (See *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 123—"reasonable minds could still differ as to its dangerousness based on the evidence of . . . the presence of back-to-back defects.")

Here, the court is presented with competing evidence of factors weighing in favor of (defect obscured by vegetation; back-to-back defects) and against (sunny and clear; Plaintiff's familiarity of the area) a finding that the defect at issue was sufficiently dangerous to a reasonably careful person. Under these circumstances, the court declines to reach a conclusion that the alleged defect is trivial as a matter of law.

As a separate basis for summary judgment, defendants Dudock and Freeman contend they owe no duty to Plaintiff because they did not create the alleged dangerous condition nor did they have knowledge of the alleged dangerous condition. "Recovery for negligence depends as a threshold matter on the existence of a legal duty of care." (*Brown*

⁶ See Defendants' UMF, Fact No. 7.

⁷ See Defendants' UMF, Fact No. 7.

⁸ See Defendants' UMF, Fact No. 8.

⁹ See Defendants' UMF, Fact No. 9.

¹⁰ See Defendants' UMF, Fact No. 10.

¹¹ See Defendants' UMF, Fact No. 11.

¹² See Defendants' UMF, Fact No. 14.

¹³ See Defendants' UMF, Fact No. 15.

¹⁴ See Plaintiff's Response to Defendants' Amended Separate Statement of Undisputed Material Facts ("Plaintiff's Response UMF"), Fact No. 15. The Request for Judicial Notice filed by defendants Dudock and Freeman in reply is DENIED as unnecessary. (See *Duarte v. Pacific Specialty Insurance Company* (2017) 13 Cal.App.5th 45, 51, fn. 6—denying request where judicial notice is not necessary, helpful or relevant).

¹⁵ See Plaintiff's Response UMF, Fact No. 14. See also Plaintiff's Additional Material Facts ("Plaintiff's AMF"), Fact No. 28.

¹⁶ See Exhibit 2 (Bate Stamp SJ0058) to Plaintiff's Documentary Evidence in Support of Opposition to Defendants' Motion for Summary Judgment.

v. *USA Taekwondo* (2021) 11 Cal.5th 204, 213). “[T]he existence of a duty is a question of law for the court.” (*Kentucky Fried Chicken of California, Inc. v. Superior Court* (1997) 14 Cal.4th 814, 819). “The question of whether a duty exists is a question of law and must be decided by the court on a case-by-case basis.” (*Dutton v. City of Pacifica* (1995) 35 Cal.App.4th 1171, 1175). “Whether a legal duty of care exists in a given factual situation is a question of law to be determined by the court, not the jury.” (*Carleton v. Tortosa* (1993) 14 Cal.App.4th 745, 754). “The existence and scope of duty are legal questions for the court.” (*Coldwell Banker Residential Brokerage Co. v. Superior Court* (2004) 117 Cal.App.4th 158, 163.”

Defendants proffer the following facts to support their assertion that they did not owe a duty under these circumstances: Before the date of the alleged incident, defendants did not alter or modify the sidewalk where the alleged incident happened in order to benefit their property.¹⁷ Defendants did not at any time make any improvements to their property such as landscaping or placing underground sprinklers that could have affected the sidewalk where the alleged incident happened.¹⁸ Before the date of the alleged incident, Defendants had no knowledge of any reports, complaints, or notice of any injuries or trip and fall incidents related to the sidewalk where the incident happened because the height differential between the two concrete slabs were so minimal.¹⁹ Prior to the alleged incident, defendants had not observed any alleged dangerous condition or defect in the sidewalk area in front of the property prior to December 8, 2023 in the area where plaintiff allegedly fell.²⁰

However, the court agrees with Plaintiff, in opposition, who contends a factual dispute lies with regard to whether defendants observed the defect in the sidewalk area in front of the property prior to December 8, 2023 in the area where plaintiff allegedly fell. Plaintiff points to defendant Dudock’s deposition testimony acknowledging his observation of defects (elevation differences) in the sidewalk when he purchased the property in 2008.²¹ The court disregards defendants’ attempt to limit their observation to “dangerous” conditions since that involves, as discussed above, a factual determination. In light of the factual dispute(s), the court cannot yet reach a conclusion with regard to whether defendants owed Plaintiff a duty.

IV. CONCLUSION

Based on the foregoing, defendants Dudock and Freeman’s motion for summary judgment is DENIED.

The Court will prepare the formal Order.

Calendar Lines # 4
Case Name Christopher Love vs Ford Motor Company et al
Case No. 24CV453450
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary judgment, or in the alternative, summary adjudication against plaintiff Christopher Love’s first, second, third, fourth, and sixth causes of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.
I. BACKGROUND This claim arises from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”) by Plaintiff

¹⁷ See Defendants’ UMF, Fact No. 16.

¹⁸ See Defendants’ UMF, Fact No. 17.

¹⁹ See Defendants’ UMF, Fact No. 18.

²⁰ See Defendants’ UMF, Fact No. 19.

²¹ See Plaintiff’s Response UMF, Fact No. 19. See also Plaintiff’s AMF, Fact No. 20.

Christopher Love against defendants Ford Motor Company (“Ford”) and Walnut Creek Ford. Plaintiff asserts to have entered a warranty contract with Ford on August 10, 2021, for a 2021 Ford Mustang, vehicle identification number 1FA6P8TH0M5126671 that was manufactured and/or distributed by Ford (the “Subject Vehicle”). (Complaint, ¶ 7). The warranty contract contained various warranties, including, *inter alia*, a bumper to bumper warranty and powertrain warranty. (*Id.* at ¶ 8).

Prior to Plaintiff’s purchase of the Subject Vehicle, Ford knew that vehicles with the same 10-speed transmissions as the Subject Vehicle suffered from defects that can cause the vehicles and their 10-speed transmissions to experience hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (collectively, the “Transmission Defect”). (Complaint, ¶ 24). Ford knew about the Transmission Defect from, *inter alia*, pre-production design failure mode and analysis data, production failure mode and analysis data, and early consumer complaints made exclusively to Ford’s network of dealers and directly to Ford. (*Id.* at ¶ 25).

Plaintiff alleges the following causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

Ford filed the instant motion for summary judgment, or in the alternative, summary adjudication on April 2, 2026, which was originally set to be heard on December 8, 2026. On April 6, 2026, the court (Hon. Nishigaya) granted Ford’s *ex parte* application to advance the hearing on Ford’s motion to June 25, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply.

II. LEGAL STANDARD

A motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)). “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*)).

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar, supra*, 25 Cal.4th at 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741). “A party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’”

(*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted]). Code of Civil Procedure section 437c(t): “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that *does not completely dispose* of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t).

“There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540 (*Reid*)).

Pursuant to Code of Civil Procedure section 437c(p)(1), the plaintiff moving for summary judgment must satisfy the initial burden of proof by presenting proving each element of a cause of action. In reviewing the motion, courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389; *Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99). Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1)). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166).

A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*). “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

Code of Civil Procedure section 457c(c): “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119). “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or

declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82). If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544).

III. PROCEDURAL ISSUES

A. REQUEST FOR JUDICIAL NOTICE AND EVIDENTIARY OBJECTION

Plaintiff’s request for judicial notice of Exhibits 1 through 17, which consists of documents that were purportedly filed and unsealed in *Avila v. Ford Motor Co.*, No. 22-CV-00542-PCP, and Exhibit 18 which consists of 25 Ford Technical Service Bulletins (“TSBs”) is DENIED. While Plaintiff asserts that these documents are “part of the record” or “publicly accessible”, the court is unable to determine whether the documents were filed with a court, and Plaintiff provides no further explanation on how the TSBs “were already publicly accessible.” For example, Exhibits 1 through 17 are not file-stamped or endorsed by any clerk of the court and the documents do not contain any identifying information (*e.g.*, case number) linking them to the *Avila* matter. The TSBs in Exhibit 18 and Plaintiff’s requests thereof are devoid of any information that would indicate that the TSBs were publicly accessible. In fact, some of the TSBs appear to have been produced as part of discovery in another matter (*e.g.*, “O’Connor, Justin v. Ford”). Accordingly, Plaintiff has not “furnishe[d] the court with sufficient information to enable it to take judicial notice of the matter.” (Evid. Code, § 453, subd. (b)). In any event, Exhibits 1 through 17 would be irrelevant as the truth of the contents of a court record cannot be judicially noticed (see *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81), and Exhibits 1 through 18, which appear to be documents produced through discovery are not matters appropriate for judicial notice. (See *TSMC North America v. Semiconductor Manufacturing Internat. Corp.* (2008) 161 Cal.App.4th 581, 594, fn. 4).

While Plaintiff cites in his opposition *Bowser v. Ford Motor Co.* (2022) 78 Cal.App.5th 587, 599 (*Bowser*) for the proposition that TSBs are admissible evidence (Opposition, p. 12:5-9), *Bowser* did not hold that TSBs are admissible as a matter of law but instead discussed the TSBs as context for the expert opinions at trial. Even if the court were to consider the TSBs as proper matters for judicial notice, Ford’s hearsay objection to the same would be well-taken. (See *People v. Wood* (1998) 17 Cal.4th 448, 445 [holding a court may not take judicial notice of hearsay statements in court documents]). Plaintiff has not demonstrated any hearsay exception (*e.g.*, business records, party admission) applies.

Given the court’s determination on Plaintiff’s request for judicial notice, the court need not reach the merits of Ford’s evidentiary objections thereto.

B. PROCEDURAL VIOLATION

Plaintiff’s response to Ford’s separate statement suffers from procedural deficiencies. For nearly all of Ford’s undisputed material facts, Plaintiff failed to (1) indicate whether the fact is disputed or undisputed; and (2) provide evidence supporting the disputed nature of the material fact. (Code Civ Proc., § 437c, subd. (b)(3)). Furthermore, Plaintiff’s responses raise evidentiary objections within the separate statements rather than the format required by California Rules of Court, rule 3.1354. The court declines to issue a ruling on Plaintiff’s evidentiary objections because they are not presented in the proper format. (See *Vineyard Spring Estates v. Super. Ct.* (2004) 120 Cal.App.4th 633, 642 (*Vineyard*) [trial courts only have duty to rule on evidentiary objections presented in proper format]).

Ford’s response to Plaintiff’s separate statement suffers from similar procedural deficiencies. While Ford properly states whether Plaintiff’s material facts are disputed, Ford fails to provide evidence in support. (Code Civ. Proc., § 437c, subd. (b)(3)). Ford also errs by raising evidentiary objections within its response to the separate statement in

violation of California Rules of Court rule 3.1354. The court also declines to issue a ruling on the evidentiary objections raised in Ford’s responses to Plaintiff’s separate statement. (See *Vineyard, supra*, 120 Cal.App.4th at 642).

IV. ANALYSIS

A. FIRST THROUGH THIRD CAUSE OF ACTIONS: SONG-BEVERLY CONSUMER WARRANTY ACT CLAIMS

A plaintiff pursuing a claim under the Act must prove that “(1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101 (*Oregel*)). The second element is the “only affirmative step the Act imposes on consumers.” (*Oregel, supra*, 90 Cal.App.4th at p. 1103). Essentially, the presentation of a vehicle for warranty repairs is a prerequisite for claims under Civil Code section 1793.2, subdivision (a)(3), (b), and (d)(2). (See Civ. Code, § 1793.2, subd. (a)(3) [requiring provision of sufficient literature or replacement parts to effect repairs during express warranty period]; Civ. Code, § 1793.2, subd. (b) [requiring commencement of service and repair within reasonable time]; Civ. Code, § 1793.2, subd. (d)(2) [requiring restitution after reasonable attempts at conformance]).

Ford emphasizes that under Civil Code section 1793.2, subdivision (d)(1), Ford is required to replace the Subject Vehicle or make restitution only if it is unable to service or repair the Subject Vehicle “to conform to applicable express warranties after a reasonable number of repair attempts.” (Motion, p. 9:3-5). Ford goes on to argue that because Plaintiff never presented the Subject Vehicle for any warranty repairs, let alone repeat repairs as required by *Silvio v. Ford Motor Company* (2003) 109 Cal.App.4th 1205 (*Silvio*), Ford’s obligations under the Act were never triggered, and consequently, Plaintiff’s claims under the Act are barred. (*Id.*, at p. 10:10-13).

In *Silvio*, the plaintiffs presented their vehicle to an authorized dealer for repairs on one occasion after experiencing sudden and rapid acceleration. (*Silvio, supra*, 109 Cal.App.4th at p. 1207). After experiencing the same issue again despite being informed that the vehicle had no issues, the plaintiffs requested a buyback, and upon Ford’s refusal, the plaintiffs filed suit. (*Ibid*). The *Silvio* court held that one instance of presentation was insufficient under Civil Code section 1793.2, subdivision (d), which required a buyback only when the manufacturer fails to repair after a “reasonable number of attempts.” (*Id.* at pp. 1208-1209).

Here, Ford relies on the August 6, 2024 repair reports and the declaration of its expert, Eric Kalis (“Kalis”). The August 6, 2024 repair report notes that the Subject Vehicle was presented for two recalls: (1) 23C35 Body Control Module BCM Configuration Update; and (2) 23E12 Underhood Liquid Fuel Jumper Line Replacement. (Ford’s Separate Statement of Undisputed Material Facts [“SSUMF”], Nos. 8, 11; Declaration of Katherine P. Vilchez [“Vilchez Decl.”], Ex. E). Kalis declares that the recalls did not fall within the warranty, and even if they had, the applicable bumper-to-bumper warranty (three-year or 36,000 miles) expired because the Subject Vehicle was presented at 47,602 miles. (SSUMF, Nos. 8-11; Declaration of Eric Kalis [“Kalis Decl.”], ¶¶ 13, 15-16). Kalis further declares, “The records indicate that this Recall was also performed proactively without any complaint from the customer”. (SSUMF, No. 14; Kalis Decl., ¶ 16).

In opposition, Plaintiff disputes Ford’s assertion that no repairs under warranty were made to the Subject Vehicle and maintains that the August 6, 2024 repair visit fell under the five-year or 60,000 miles powertrain warranty

instead.²² In support, Plaintiff offers his own declaration, attesting that the Subject Vehicle suffered from defects in the transmission, windshield wiper fluid system, and brake system repairs subject to a safety recall and that he “presented the Subject Vehicle to Ford’s authorized repair facilities on approximately five separate occasions for repair” of those defects after discovering the issues on August 10, 2024. (Declaration of Christopher Love [“Love Decl.”], ¶¶ 5-7). Plaintiff further declares, “Despite these repair attempts, Ford and its authorized dealers were unable to conform the vehicle to the applicable express warranty.” (*Id.* at ¶ 7). Plaintiff further notes that the five-year or 60,000 miles powertrain warranty remained in effect on August 6, 2024, because the Subject Vehicle did not exceed the 60,000-mile warranty until August 18, 2025—*i.e.*, over a year later. (*Id.* at ¶ 8).

On reply, Ford insists that the five-year or 60,000 miles powertrain warranty is “irrelevant to the analysis” because Kalis declares, albeit without further explanation, that the only applicable warranty to the proactive recall repairs is the three-year or 36,000 miles bumper-to-bumper warranty. (Kalis Decl., ¶¶ 15-16). Even so, Ford provides no response to Plaintiff’s declaration that he presented the Subject Vehicle on five separate occasions for repairs after the August 6, 2024 repair visit, and Ford could not conform the Subject Vehicle to the applicable warranty (*i.e.*, the powertrain warranty). (Love Decl., ¶¶ 6-8). Accordingly, Plaintiff demonstrates the existence of a triable issue of material fact as to whether Plaintiff presented the Subject Vehicle multiple times for repairs under warranty. (See *Oregal, supra*, 90 Cal.App.4th at p. 1103 [noting consumers have burden to present the vehicle for a reasonable opportunity to repair and have no responsibility for manufacturer’s choice to take the opportunity]; see also *Reid, supra*, 50 Cal.4th at p. 540 [precluding trial court from weighing the evidence or determining credibility of declarant]).

Ford’s remaining arguments are unsupported by law or evidence. Ford argues that the August 6, 2024 repairs made pursuant to proactive recalls are not covered by the warranty but provided no authority to support this assertion in its moving papers. Instead, Ford provides the pertinent authorities—*Noori v. Jaguar Land Rover N. Am., LLC* (C.D.Cal. Mar. 31, 2021, No. 2:19-cv-08624-FLA (JPRx) 2021 LX 46804, at *12 (*Noori*) and *Adams v. FCA US LLC* (C.D.Cal. Dec. 27, 2016, No. CV 16-4317-JFW (MRWx) 2016 LX 59307, at *16 (*Adams*))—in its reply. The court declines to consider this argument because Ford “may not attempt to rectify their omissions and oversights for the first time in their reply briefs because this deprives the opposing party of an opportunity to respond.” (*Keyes v. Bowen* (2010) 189 Cal.App.4th 647, 656 (*Keyes*); see *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 (*Public Employment*) [“The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived.”]). Ford also argues that Plaintiff provides no evidence that it failed to make service literature and replacement parts available, but the cited evidence makes no reference to service literature or replacement parts. (See SSUMF, Nos. 5-12 [citing Kalis Declaration and Vilchez Declaration]). The court rejects this undeveloped argument. (*Public Employment, supra*, 29 Cal.App.5th at p. 939).

Given the foregoing, the court DENIES Ford’s motion for summary adjudication of the first, second, and third causes of action.

B. FOURTH CAUSE OF ACTION: BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY

Ford avers that Plaintiff’s fourth cause of action for the breach of the implied warranty of merchantability pursuant to the Act (Civ. Code, §§ 1791.1, 1794, 1795.5) fails as a matter of law because Plaintiff has no evidence that the

²² Plaintiff also argues that under *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 141 (*Donlen*), “repairs performed pursuant to a recall count as repair opportunities” as a matter of law, but the argument is unsupported. *Donlen* concerned an appeal from an order granting a motion for new trial and considered whether a trial court erred by admitting evidence of a repair not made under warranty. (*Id.* at pp. 148-149). Moreover, the page Plaintiff cites merely recounts the factual background of the case rather than any determination of law.

Subject Vehicle experienced any defects during the first year of ownership such that the Subject Vehicle was not fit for the ordinary purposes for which it was sold. (Motion, p. 11:17-19). Ford points out that the duration of the implied warranty of merchantability is at most one year following the sale of the good (Civ. Code, § 1791.1), and Plaintiff first presented the Subject Vehicle for repairs on May 13, 2023—two years after its purchase. (SSUMF, No. 7).

As pointed out in the opposition, however, “The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. [Citations.]” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304). “In the case of a latent defect, a product is rendered unmerchantable and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (*Id.* at p. 1305). Ford’s argument on this issue is therefore incomplete as it fails to address the alleged latent defects of the Subject Vehicle. (See Complaint, ¶ 56 [“The subject vehicle was sold with one or more latent defect(s) set forth above.”]; see also *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477 [pleadings frame the issues to be resolved on a motion for summary judgment]). Ford does not and cannot remedy its failure to address the latent defect allegation in its reply. (See *Keyes, supra*, 189 Cal.App.4th at p. 656). Furthermore, that Plaintiff failed to present the Subject Vehicle within one year of its purchase is of no moment, considering that “there is no requirement the seller be given an opportunity to repair when the implied warranty of merchantability is breached.” (*Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 404).

Given the foregoing, the court DENIES Ford’s motion for summary adjudication of the fourth cause of action.

C. SIXTH CAUSE OF ACTION: FRAUDULENT INDUCEMENT – CONCEALMENT

In moving for summary adjudication on the sixth cause of action, Ford asserts that (1) Plaintiff has no evidence of any complaint, issue or repair relating to the Subject Vehicle’s transmission; and (2) Plaintiff has no evidence, and cannot reasonably obtain evidence, to demonstrate Ford’s prior knowledge of the Transmission Defect.

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if the plaintiff had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 [citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311]).

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that “plaintiff does not possess, and *cannot reasonably obtain*, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855, emphasis added). Proof that the plaintiff lacks needed evidence can consist of introducing “factually devoid” discovery responses where there has been an adequate opportunity for discovery. (See *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590). But “a defendant cannot simply ‘argue’ that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative ‘showing’ that the plaintiff *cannot* do so.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103 (*Andrews*), italics original). When relying on “factually devoid” discovery responses, the defendant must show that “discovery was sufficiently comprehensive, and plaintiffs’ responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses].” (*Id.* at p. 107 [citing *Scheidig v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

On September 3, 2025, Plaintiff responded to Ford's special interrogatories, which required Plaintiff to "state all facts", "identify all persons", and "identify all documents" supporting his fraudulent concealment claim. (SSUMF, Nos. 15-18; Vilchez Decl., Ex. C). Plaintiff responded by referencing his allegations within the Complaint, his 10-page document production, and vaguely referring to Ford's "agents, representatives, and employees". (SSUMF, Nos. 19-21).

As Ford argues, Plaintiff cannot rely on the allegations within its Complaint in opposing a motion for summary judgment. (See Motion, p. 13:13, fn. 5 [citing *Romak Iron Works v. Prudential Ins. Co.* (1980) 104 Cal.App.3d 767, 775]; see also *Andrews, supra*, 138 Cal.App.4th at p. 107 ["If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations...the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses."]). Furthermore, Plaintiff's 10-page document production consists of repair reports, vehicle loan information, the Subject Vehicle's registration, and the Subject Vehicle's window stickers, which provide no evidentiary support for the assertion that the Subject Vehicle suffered from the Transmission Defect or that Ford had prior knowledge of the Transmission Defect. (Vilchez Decl., Ex. C). Notably, all documents are dated after Plaintiff had purchased the Subject Vehicle, and therefore, do not demonstrate Ford's prior knowledge of the Transmission Defect before Plaintiff purchased the Subject Vehicle.

While Plaintiff introduces his own declaration to dispute Ford's assertion that the Subject Vehicle suffered from the Transmission Defect (Love Decl., ¶ 5), Plaintiff offers no admissible evidence to contradict Ford's evidence that Ford had prior knowledge but concealed the Transmission Defect. This omission is fatal to Plaintiff's claim.

Plaintiff's September 3, 2025 discovery responses all contain the caveat, "Discovery and investigation are ongoing, and Plaintiff reserves the right to supplement and/or amend this response." The record does not contain a supplement discovery response, nor does Plaintiff argue or provide such a document. Considering that Plaintiff had more than six months to supplement his discovery responses and failed to do so, the court can infer that Plaintiff cannot produce more evidence on the existence of the Transmission Defect in the Subject Vehicle or that Ford had prior knowledge but concealed the Transmission Defect. (See *Gulf Ins. Co. v. Berger* (2000) 79 Cal.App.4th 114, 134 ["to grant summary judgment, the court must be able to infer from the record that the plaintiff could produce no other evidence on the disputed point."])

Plaintiff's opposition heavily relies on the TSBs to demonstrate Ford's prior knowledge of the Transmission Defects. As noted above, however, the TSBs are not proper matters for judicial notice, and Plaintiff's citation to *Bowser* does not support otherwise.

Given the foregoing, the court GRANTS Ford's motion for summary adjudication of the sixth cause of action for fraudulent concealment – inducement.

V. CONCLUSION

Based on the foregoing, The court DENIES Ford's motion for summary judgment.

The court DENIES Ford's motion for summary adjudication of the first, second, third, and fourth causes of action.

The court GRANTS Ford's motion for summary adjudication of the sixth cause of action.

The Court will prepare the formal Order.

Calendar Lines # 6 – 7
Case Name Ying Wang vs The John Stewart Company et al.
Case No. 25CV469820
Motion to Compel (Line # 6) & Motion for Protective Order (Line # 7) The defendant The John Stewart Company and Joanna Flores (collectively “JSC”) filed a motion to compel responses to special interrogatories, set one and sanctions (Line #6). The plaintiff Ying Wang filed a motion for protective order to limit the number of interrogatories and scope and sanctions (Line #7). The Background portion set forth in Line #6 also applies to Line #7. <u>MOTION TO COMPEL (LINE #6)</u> I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a housing dispute. On July 7, 2025, Plaintiff Ying Wang (“Wang”) filed a Complaint against Defendants The John Stewart Company, Joanna Flores, Betty Ann Gardens Leasing Office, and HomeFirst Services of Santa Clara County (collectively “Defendants”) for statutory and common law violations, including, negligence, violation of Fair Housing Act, violation of Americans with Disability Act, intentional infliction of emotional distress, constructive eviction, breach of duty, invasion of property, civil conspiracy and relational, disability and racial discrimination and declaratory and injunction relief. (Complaint). B. RELEVANT PROCEDURAL BACKGROUND On August 14, 2025, Defendants JSC propounded written discovery including special interrogatories (“SPROG”), set one, consisting of 77 interrogatories on Plaintiff Wang. (Declaration of Kennick, at p. 7; Exhibit A). JSC asserts that responses were due on September 18, 2025. (<i>Id.</i>) On September 1, 2025, Plaintiff Wang served a motion for protective order regarding the special interrogatories, but no hearing date was provided. (<i>Id.</i>; Exhibit B). On September 11, 2025, the plaintiff served an application for a protective order, but no hearing date was provided. (<i>Id.</i>) When the Defendants JSC did not receive responses to discovery, it reached out to the plaintiff and granted a two-week extension. (<i>Id.</i>) By October 2025, Defendant JSC did not receive any responses to the SPROG. The motion was filed on October 14, 2025, Defendant JSC filed this motion to compel SPROGs, set one and sanctions. The motion was accompanied by a proof of service via mail and electronic service to the plaintiff in proper on that same day. The plaintiff opposes the motion as procedurally defective, premature, excessive, duplicative, overbroad, and in violation of the statutory limits, and filed opposition papers on April 15, 2026. (Plaintiff’s Opposition, p. 2-3). Plaintiff denies to be evading discovery and points to efforts to file a protective order pertaining to the SPROG in September 2025. (<i>Id.</i>, at p. 3; Declaration of Wang, at p. 2). Plaintiff contends that multiple defendants in this matter have propounded discovery with Defendant JTC propounding 77 interrogatories and Defendant HomeFirst propounding 60 interrogatories, citing this exceeds the statutory limit. (<i>Id.</i>, at p. 4). Plaintiff contests that defendants refused to reduce the number of interrogatories. (Declaration of Wang, at p. 2). Plaintiff asserts that defendants fail to provide sufficient justification, burdensome, excessive and constitutes a misuse of discovery. (<i>Id.</i>, at p. 4-6). In response to Defendants John Stewart’s motion for sanctions, the plaintiff asserts to have acted in good faith and thus deems the request improper. Rather, the plaintiff seeks \$1,000.00 in monetary sanctions against the Defendants conduct for unnecessary motion practice. Defendant JTC attached a declaration citing its need to exceed the 35 SPROG that was attached to its SPROG, set one. (Declaration of Kennick, at p.1; Exhibit A). Defense argues that the additional 42 SPROG in set one is warranted under Code of Civil Procedure section 2030.070(a) “. . . because of the quality and complexity of the issues involved in this case and because of the expedience of using this method of discovery. The Interrogatories

being propounded in this set of Special Interrogatories are not being used for an improper purpose, such as to harass the party or the attorney for the party to whom it is directed or to cause unnecessary delay or needless increase in the cost of litigation.” (Declaration of Kennick, at p.1).

This motion was originally set for hearing on April 28, 2026, but the court found that the parties had not sufficient met-and-conferred regarding the motion pursuant to Code of Civil Procedure section 2016.040 and continued this motion to this date and ordered parties to meet-and-confer. The Court noted that the plaintiff had a duty to respond to at least the first 35 SPROG. Since that date, the parties met-and-conferred and filed a joint statement on June 9, 2026, providing an update on the outstanding discovery at issue.

The Court has carefully reviewed the Defendant JSC’s moving papers including a notice of motion memorandum of points and authorities, Declaration of Shelby Kennick in support of the defendant’s moving papers with Exhibits A-B attached (totaling 25 pages); the plaintiffs opposition (totaling 6 pages); Declaration of Ying Want in support of Opposition to the motion and attached Exhibits A-F (totaling 33 pages); Joint Statement regarding the motion (totaling 6 pages); and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL REQUIREMENTS

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

B. MOTION TO COMPEL RESPONSES

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; see also, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the

discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422). Under Code of Civil Procedure section 2030.030, a party may propound 35 specially prepared interrogatories that are relevant to the subject matter of the pending action. Any additional number of interrogatories must be accompanied a declaration under section 2030.050, otherwise a party needs only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance under section 2030.240 on the ground that the limit has been exceeded.

III. ANALYSIS

Here, the parties filed a joint statement regarding the outstanding SPROGs at issue. (Parties Joint Statement, at p. 2). After meeting and conferring on June 3, 2026, the parties stipulated that the defendant will limit the initial 77 SPROGs to 47. (*Id.*) While Defendant JTC does not concede that the requests are duplicative or burdensome, parties reached a good faith agreement to limit the SPROGS requested. (*Id.*) Parties stipulated that the plaintiff would provide responses to SPROGs, set one, Nos: 1-18, 21-22, 25-26, 29-30, 33-34, 37-38, 41-42, 44-45, 47-48, 50-51, 54-55, 57-58, 60, 63, and 73-77. (*Id.*).

On June 5, 2026, Plaintiff Wang requested that Defendant JTC withdraw or consolidate SPROG Nos. 42, 45, 48, 50, and 63. (*Id.*) The defendant refused to withdraw the SPROGs that parties earlier agreed to on June 3, but did agree to limit the scope of SPROG No. 63 to seven (7) years prior to Plaintiff Wang’s tenancy and relating to claims at issue. (*Id.*).

Thus, the following SPROGs remain unopposed and parties stipulate that the plaintiff will provide responses, Nos: 1-18, 21-22, 25-26, 29-30, 33-34, 37-38, 41, 44, 47, 51, 54-55, 57-58, 60, 73-77.

The SPROGs that were previously stipulated by the parties and now are opposed by the plaintiff involve: Nos.: 42, 45, 48, 50, and 63. The Court reviews the remaining five SPROGS at issue and upon review of the briefing and analysis, the Court GRANTS and DENIS the SPROGS specified below:

SPROG No. 42

Please IDENTIFY any and all documents with sufficient specificity, sufficient to form the basis for a request to produce and inspect pursuant to CCP §2030.010, which support YOUR contention of Invasion of Privacy.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the seventh cause of actions, invasion of privacy in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 45

Please IDENTIFY any and all documents with sufficient specificity, sufficient to form the basis for

a request to produce and inspect pursuant to CCP §2030.010, which support YOUR contention of Civil Conspiracy and Retaliation.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the eighth cause of actions, civil conspiracy and retaliation in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 48

Please IDENTIFY any and all documents with sufficient specificity, sufficient to form the basis for a request to produce and inspect pursuant to CCP §2030.010, which support YOUR contention of Disability and Racial Discrimination.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the ninth cause of actions, disability and racial discrimination (ADA, FEHA, and FHA) in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 50

Please state all facts that support YOUR contention of Declaratory and Injunctive Relief.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the tenth cause of actions, declaratory and injunctive relief in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 63

Please identify each and every pre-existing medical condition that YOU suffered from prior to the YOUR tenancy at the PREMISES.

GRANTED in part and DENIED in part. The Court finds the request to be overbroad in relation to timeframe and scope, vague, and unduly burdensome. The Court will limit the scope of this request to five (5) years prior to Plaintiff's tenancy to the present in terms of time. The Court will limit the scope for medical conditions (physical and emotion) as alleged in the Complaint and at issue in this case.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). "But where a violation is willful, preceded

by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Defendant JTC seeks sanctions and attorney’s fee in the amount of \$985.00 against the plaintiff based on plaintiff’s failure to provide responses to special interrogatories without substantial justification. Defense seeks a total of five hours of time at the hourly rate of \$185.00: two hours to prepare the present motion; estimated one hour to attend the hearing; estimated one hour to review the opposition brief; and estimated one hour to prepare and file a reply brief. (Declaration of Kennick, at p. 8). Defendant JTC asserts that the plaintiff failed to respond to any of the SPROGs, set one that were propounded. (Parties’ Joint Statement, at p. 2).

Plaintiff Wang repudiates the defendant’s assertion that the plaintiff refused to respond to discovery. (*Id.*). Rather, the plaintiff asserts that genuinely disputed the number and scope of discovery propounded under Code of Civil Procedure section 2030.030 and believed the SPROGs to exceed the number allowed, were duplicative, cumulative, compound and overlapping. (*Id.*, at p. 3). Plaintiff points to the fact that she filed a motion for protective order concerning the excessive interrogatories. (*Id.*). Plaintiff continues to assert that she agreed to provide substantive responses to discovery after meeting-and-conferring, but continues to dispute SPROGS Nos. 42, 45, 48, and 50. (*Id.*). In response, the plaintiff seeks sanctions against Defendant JTC in the amount of \$1,000.00 for improper discovery. (Plaintiff’s Opposition, at p. 6). The motion for sanctions by the plaintiff against Defendant JTC is DENIED.

Based on the Court’s granting the motion to compel and the plaintiff not providing any responses to SPROGS to date, the Court will GRANT the motion for sanctions against the plaintiff in the amount of \$430.00 based on 2 hours of attorney time at the rate of \$185.00 per hour for preparation and filing of the motion. No reply brief was submitted, the court will not award time for estimated prospective time. The sanctions also include \$60.00 in filing fees.

V. CONCLUSION

Based on the foregoing, the Court orders as follows: The motion to compel responses to SPROG, set one, Nos.: 1-18, 21-22, 25-26, 29-30, 33-34, 37-38, 41, 44, 47, 51, 54-55, 57-58, 60, 73-77 was stipulated by the parties, remains unopposed, and is GRANTED. The plaintiff is ORDERED to provide verified responses within twenty (20) days of this hearing.

The motion to compel responses to SPROG, set one, Nos.: 42, 45, 48, 50, and 63 was stipulated by the parties, but now opposed by the plaintiff. Upon review of the SPROGs Nos. 42, 45, 48, and 50 is GRANTED. SPROG No. 63 is GRANTED in part and DENIED in part. The Court finds the request to be overbroad in relation to timeframe and scope, vague, and unduly burdensome. The Court will limit the scope of this request to five (5) years prior to Plaintiff’s tenancy to the present in terms of time. The Court will limit the scope for medical conditions (physical and emotion) as alleged in the Complaint and at issue in this case. The plaintiff is ORDERED to provide verified responses within twenty (20) days of this hearing.

Based on the Court’s granting the motion to compel and the plaintiff not providing any responses to SPROGS to date, the defendant JTC’s motion for sanctions against the plaintiff is GRANTED. However, the requested amount of \$985.00 is DENIED. The Court will award sanctions for attorney’s fees and costs in the amount of \$430.00.

The Court will prepare the formal Order.

MOTION FOR PROTECTIVE ORDER (LINE #7)

I. BACKGROUND

See Background section in Line #6.

On October 14, 2025, Plaintiff Ying Wang (“Wang”) filed a motion for protective order seeking to limit the number of interrogatories propounded by Defendant John Stewart Company and Joanna Flores (“JSC”) and Homefirst Services of Santa Clara (“Homefirst”) (collectively “Defendants”) in this matter. Plaintiff asserts that Defendants have propounded nearly 150 special interrogatories (“SPROG”). (Plaintiff’s motion, p. 2).

The motion was accompanied by a proof of service indicating electronic service on that same day.

On June 5, 2026, Defendant Homefirst filed an opposition to the plaintiff’s motion along with a Declaration of Umid A. Babojanov in support of the defense’s opposition. Defendant Homefirst avers that the plaintiff’s motion is untimely as the motion for protective order was filed more than sixty days after the plaintiff’s responses to Defendant Homefirst SPROGs were due. (Defendant Homefirst’s Opposition, at p. 4). Homefirst also asserts that additional SPROGs were propounded with a declaration stating the need based on the complexity of the case or to expedient using discovery in accordance with Code of Civil Procedure section 2030.040. (*Id.*). Homefirst asserts that the sixty SPROGs are warranted based on the scope of Plaintiff’s Complaint. (*Id.*, at p. 5-6).

Defendant JSC did not file an opposition brief. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 10 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). However, the Court notes that subsequently, Plaintiff Wang and Defendant JSC met-and-conferred and reached a stipulation on outstanding SPROGs at issue and the protective order as to Defendant JSC is moot by way of the stipulated discovery and court’s ruling in Defendant JSC’s motion to compel discovery SPROGs, set one (Line #6).

On June 16, 2026, the plaintiff filed a reply brief to Defendant Homefirst’s opposition.

The Court has carefully reviewed Plaintiff Wang’s moving papers including a notice of motion memorandum of points and authorities (totaling 5 pages); Declaration of Ying Wang in support of the moving papers with Exhibits A-C attached (totaling 30 pages); Defendant Homefirst’s opposition and Declaration of Umid A. Babojanov in support of the defense’s opposition (totaling pages); Plaintiff’s reply (totaling 8 pages); Plaintiff’s Declaration in support of the reply and attached A – E (totaling 19 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.030(a)(1) a party may propound to another party “Thirty-five specially prepared interrogatories that are relevant to the subject matter of the pending action.” Subdivision (b) provides that, “[e]xcept as provided in Section 2030.070, no party shall, as a matter of right, propound to any other party more than 35 specially prepared interrogatories.”

Code of Civil Procedure section 2030.040 permits a party to propound ***more than*** 35 special interrogatories with a supporting declaration of necessity that includes the following:

“(a) Subject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a

greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

- (1) The complexity or the quantity of the existing and potential issues in the particular case.
- (2) The financial burden on a party entailed in conducting the discovery by oral deposition.
- (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

(b) If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.”
(Emphasis added).

The requirements for the declaration for additional discovery, requiring “a declaration containing substantially the following. . .” is set forth in Code of Civil Procedure section 2030.050, which includes a paragraph stating:

“4. I have previously propounded a total of _____ interrogatories to this party, of which _____ interrogatories are not official form interrogatories....

“8. This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because _____ (Here state each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the instant lawsuit).”

“The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

- (1) That the set of interrogatories, or particular interrogatories in the set, need not be answered.
- (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.”

With respect to protective orders generally, the burden of showing good cause is ordinarily on the party seeking the protective order. (*Beverly Hills Nat. Bank & Trust Co. v. Superior Court* (1961, 2nd Dist). 195 Cal.App. 2d 861, 866-867). The granting of a protective order is within the discretion of the trial court. (*Id*). The granting or denial of a protective order is reviewed for abuse of discretion. (*Meritplan Insurance Co. v. Superior Court* (1981) 124 Cal.App.3d 237, 242). When the record shows facts on which the trial court exercised its discretion, this exercise will not be disturbed on appeal. (*Foster v. Gillette Co.* (1979) 100 Cal.App.3d 569, 578).

III. ANALYSIS

Defendant Homefirst served the plaintiff with a total of 60 SPROGs. Plaintiff correctly asserts that this exceeds the 35 SPROGs allowed under Code of Civil Procedure section 2030.050. However, Defendant submitted a declaration of necessity outlining why additional interrogatories are warranted under Code of Civil Procedure 2030.040. (Homefirst’s opposition, at p. 4).

The Court finds that Defendant Homefirst propounded 60 SPROGs, which is more than the 35 limit under section 2030.030, but submitted a “Declaration for Additional Discovery” that was attached to the SPROGS in compliance with section 2030.050. Specifically, the defendant included the following pertinent paragraphs:

3. This set of interrogatories will cause the total number of specially prepared interrogatories propounded to the party to whom they are directed to exceed the number of specially prepared interrogatories permitted by Section 2030.030 of the Code of Civil Procedure.

4. Defendants have previously propounded a total of 0 specially prepared interrogatories.
5. This set of interrogatories contains a total of 60 specially prepared interrogatories.
6. I am familiar with the issues and the previous discovery conducted by all of the parties in the case.
7. I have personally examined each of the questions in this set of interrogatories.
8. This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because of the complexity of the issues presented and the expedience of using this method of discovery.

(Exhibit A, attached to the defendant's opposition, p. 23).

Defendant Homefirst asserts that the additional SPROGs are warranted because of the complexity of the issues and expedience of the discovery method. (*Id.*, at p. 5). Homefirst avers that the SPROGs are necessary based on the scope of the plaintiff's complaint that asserts ten separate causes of action asserting multiple legal theories arising under Federal and State Law, including: housing discrimination, disability discrimination, racial discrimination, ADA violations, retaliation, conspiracy, privacy violations, negligence, emotional distress, constructive eviction, RRH/PSH program violations, physical injury, mental injury, medical damages, punitive damages, declaratory relief, and injunctive relief. (*Id.*, at p. 5-6; Complaint).

Further, Homefirst asserts that the plaintiff seeks recovery for medical expenses, physical suffering, emotional distress, loss of employment, loss of housing opportunities, and punitive damages. (Homefirst's opposition, at p. 6). Plaintiff objects to interrogatories seeking information regarding her physical and mental health conditions, which Defendant Homefirst avers lacks merit. (*Id.*, at p. 8). By alleging the following medical conditions: physical deterioration; lung pain; vitamin deficiencies; depression; traumatic brain injury; vascular brain disease; anxiety attacks; emotional distress; suicidal ideation; and loss of employment, the defense argues that Plaintiff has put her medical condition directly at issue. (*Id.*). The defendant asserts that it is entitled to relevant discovery as to the nature of Plaintiff's injuries; the existence of preexisting conditions; the identity of healthcare providers; medical causation; alternative causes of injury; and the extent of claimed damages based on the plaintiff seeking recovery for physical injuries, emotional distress, medical expenses, and other personal injury damages. (*Id.*).

Given the expansive scope of the prayers for relief alleged in the plaintiff's Complaint, Homefirst seeks discovery relating to the causes of actions and allegations. (*Id.*). Defendant Homefirst asserts the SPROGS are narrowly tailored to seek relevant evidence that is reasonably calculated to lead to the discovery of admissible evidence. Specifically, Homefirst asserts that the SPROGS seek three categories of information: (1) facts supporting allegations; (2) witnesses supporting allegations; and (3) documents supporting allegation. (*Id.*). Defendant Homefirst avers that the SPROGS are contention interrogatories that are expressed authorized under California law. (*Id.*, at p. 7). Homefirst also emphasize that the plaintiff fails to identify a single SPROG as privileged, irrelevant, unintelligible, impossible to answer, or unduly burdensome, but rather asserts that the number of SPROGS propounded exceeds 35. (*Id.*). Defendant Homefirst argues that California law is clear that self-represented parties are held to the same procedural rules and discovery obligations as represented parties. Thus, defense avers that the plaintiff cannot assert that discovery is burdensome due to her self-representation. (*Id.*, at p. 9).

The Court does note that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247). A self-represented litigant is not entitled to any

greater consideration than other litigants and attorneys. (*Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them]). The fact that Plaintiffs are self-represented litigants does not relieve them of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.090(d): “The court shall impose a monetary sanction...against any party, person or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Defendant Homefirst seeks sanctions in the total amount of \$1,125.00 against the plaintiff, should Homefirst prevail in opposing the plaintiff’s motion for protective order absent substantial justification. (Declaration of Babojanov, at p. 12). Homefirst’s counsel, Umid A. Babojanov attests that his hourly rate is \$225.00 and that he spent approximately five hours reviewing, researching, preparing and drafting an opposition, Declaration, and exhibits, as well as preparing a motion for sanctions. (*Id.*). Defense argues that the plaintiff’s motion is based on a mistaken interpretation of the law, specifically that SPROGs are limited to 35 interrogatories under Code of Civil Procedure section 2030.050; the plaintiff ignored the declaration of necessity served with the SPROGS pursuant to Code of Civil Procedure section 2030.040; the plaintiff failed to identify any improper SPROG; the untimely filing of the motion for protective order; and the defendant having incurred attorney’s fees and costs in defending against the plaintiff’s motion for protective order, which lacked legal and factual merit. Defendant Homefirst seeks in sanctions against the plaintiff. (*Id.*, at p. 11).

Plaintiff opposes the defendant’s request for sanctions and asserts to have acted with substantial justification in seeking the protective order. (Plaintiff’s reply, p. 3). Plaintiff emphasizes that the violation lies in the defendant serving more than 35 SPROGs. (*Id.*, at p. 3). Plaintiff repudiates the defendant’s claim that there was a delay in seeking relief. (*Id.*, at p. 2; Declaration of Wang, at p. 2; Exhibits A-B). Plaintiff avers that the interrogatories are repetitive and duplicative. (*Id.*, at p. 3).

The Court notes that the defendant Homefirst complied with Code of Civil Procedure section 2030.050 for propounding SPROGS. The plaintiff based on a mistake of law and fact filed a motion for a protective order that required the defendant to expend time and costs to oppose the motion. However, based on the straightforward nature of the motion, the court will reduce the number of hours requested from five to 1.5 hours at the hourly rate of \$225.00. Thus, the prevailing party, Defendant Homefirst is awarded \$337.50 in sanctions against the plaintiff.

V. CONCLUSION

Based on the foregoing, the plaintiff’s motion for a protective order is DENIED.

Based on section 2030.090(d), the Court will award sanctions in the amount of \$337.50 to Defendant Homefirst and against the plaintiff for filing an unsuccessful motion based on a mistake of law and fact, as well as the totality of the circumstances set forth in the motion. The plaintiff is ORDERED to pay the sanctions within thirty (30) days of this Order.

The Court will prepare the formal Order.

Calendar Line # 8
Case Name Diana Guadalupe Chiapana vs Jaspinder Grewal et al.
Case No. 25CV470037
Demurrer Before the court is defendants’ demurrer to complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. BACKGROUND In 2019, Dominic DeBiaso pursued his former employer, Care Intranet Inc. (“CII”), for unpaid wages. (Complaint, ¶4). On February 26, 2019, a hearing was held at the offices of the California Labor Commissioner. (Complaint, ¶5). Defendant Puneet D. Grewal (“Puneet”)²³, represented by counsel, was found not individually liable and was dismissed. (Complaint, ¶¶6 – 7). Defendant Jaspinder P. Grewal (“Jaspinder”) was not served in the Labor Commissioner matter. CII was served, but did not put on a defense. (Complaint, ¶10). The Labor Commissioner issued an “Order, Decision or Award” on May 8, 2019 in favor of Dominic DeBiaso and against CII. (Complaint, ¶11 and Exh. 1). Judgment based upon the Labor Commissioner’s Order was entered in Santa Clara County Superior Court on July 22, 2019 in the total amount of \$36,203.77 (“Judgment”) in case number 19CV352304 (“Underlying Action”). (Complaint, ¶12 and Exh. 2). On November 9, 2020, the original judgment creditor, Dominic DeBiaso, transferred and assigned all rights, title, and interest in the Judgment to Phillip Erkenbrack. (Complaint, ¶13). On November 8, 2023, Phillip Erkenbrack transferred and assigned all rights, title, and interest in the Judgment to plaintiff Diana C. Guadalupe Chipana dba Wealth Recovery Solutions (“Plaintiff”). (Complaint, ¶14). No money has been paid on the Judgment and, as of May 18, 2025, the balance has risen to \$57,301.14 with interest continuing to accrue at 10% per annum. (Complaint, ¶¶15 – 16). Plaintiff now brings a separate and independent action against defendants Jaspinder and Puneet (collectively, “Grewals” or “Defendants”) on an alter ego theory to enforce the prior Judgment against the corporation, CII. On July 8, 2025, Plaintiff filed a verified complaint against defendant Grewals asserting a single cause of action “For Alter Ego Liability to Add Defendants Jaspinder P. Grewal and Puneet D. Grewal as Additional Judgment Debtors.” On October 14, 2025, defendant Grewals filed the motion now before the court, a demurrer to Plaintiff’s Complaint. II. LEGAL STANDARD Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)).

²³ The court refers to defendants by their first names for the sake of clarity and means no disrespect.

“A general demurrer will lie where the complaint ‘has included allegations that clearly disclose some defense or bar to recovery.’ [Citation.]” (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152). Defendants Chen and YESI generally demur to Plaintiff’s first cause of action for negligence because the FAC includes allegations that Plaintiff released defendant Chen and other parties from all liability for the accident. (FAC, ¶12 and Exh. A). “The existence of a valid release is a complete defense to a tort action against the releasee.” (*Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1026 (*Rodriguez*)).

Where the complaint's allegations or judicially noticeable facts reveal the existence of an affirmative defense, the "plaintiff must 'plead around' the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action . . .” (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 824).

The doctrine of res judicata may be raised on demurrer. (See *Lincoln Property Co. v. Travelers Indemnity Co.* (2006) 137 Cal.App.4th 905).

“As generally understood, ‘[t]he doctrine of res judicata gives certain conclusive effect to a former judgment in subsequent litigation involving the same controversy.’ [Citation.] The doctrine ‘has a double aspect.’ [Citation.] ‘In its primary aspect,’ commonly known as claim preclusion, it ‘operates as a bar to the maintenance of a second suit between the same parties on the same cause of action. [Citation.]’ [Citation.] ‘In its secondary aspect,’ commonly known as collateral estoppel, ‘[t]he prior judgment . . . “operates” ’ in ‘a second suit . . . based on a different cause of action . . . “as an estoppel or conclusive adjudication as to such issues in the second action as were actually litigated and determined in the first action.” [Citation.]’ [Citation.] ‘The prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding. [Citations.]’ ” (*People v. Barragan* (2004) 32 Cal.4th 236, 252–253, 9 Cal.Rptr.3d 76, 83 P.3d 480). (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797).

“In deciding whether to apply collateral estoppel, the court must balance the rights of the party to be estopped against the need for applying collateral estoppel in the particular case, in order to promote judicial economy by minimizing repetitive litigation, to prevent inconsistent judgments which undermine the integrity of the judicial system, or to protect against vexatious litigation.” (*Alvarez v. May Dept. Stores Co.* (2006) 143 Cal.App.4th 1223, 1233).

III. ANALYSIS

Defendant Grewals demur on the ground that the Plaintiff’s complaint is barred by the doctrine of res judicata.

Here, Plaintiff’s complaint expressly states Code of Civil Procedure section 187²⁴ vests the court with “the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor. In doing so, the court is amending the judgment to add the real judgment debtor.” (Complaint, ¶17). Plaintiff’s complaint goes on to allege and explain that a plaintiff may bring a motion in the original action or file a separate independent action to add a judgment debtor who was an alter ego of the original judgment debtor. “In petitioning the trial court to amend a

²⁴ Code Civ. Proc., §187 states, “When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.”

judgment to add an alter ego defendant, must the plaintiff proceed by a motion in the original action, or may plaintiff proceed by complaint in an independent action on the judgment? ***Either procedure*** will do.” (*Lopez v. Escamilla* (2020) 48 Cal.App.5th 763, 763 (*Lopez*); see also *Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 288—“***As an alternative*** to filing a section 187 motion to add a judgment debtor to a judgment, the judgment creditor may file an independent action on the judgment, alleging that the proposed judgment debtor was an alter ego of an original judgment debtor.”)

Defendant Grewals ask the court to take judicial notice of the memorandum of points and authorities Plaintiff filed in the Underlying Action to amend judgment to add alter-egos [defendant Grewals] to judgment as well as Plaintiff’s declaration filed in the Underlying Action in support of her motion to amend judgment to add alter-egos [defendant Grewals] to judgment. Defendant Grewals also ask this court to take judicial notice of the court’s (Hon. E. Pennypacker) January 29, 2025 order denying Plaintiff’s motion in the Underlying Action to amend the judgment. As these are all court records, this court will take judicial notice of the requested documents.

Evidence Code section 452 and 453 permit the trial court to “take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments—but [the court] cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact.” (*People v. Woodell* (1998) 17 Cal.4th 448, 455).

From the judicially noticed court records from the Underlying Action, defendant Grewals ask the court to find Plaintiff’s complaint now barred by the doctrine of res judicata or collateral estoppel since Judge Pennypacker has already denied Plaintiff’s motion and the issues raised are the same. The authorities cited by Plaintiff in the complaint allowing an independent action instead of making a motion in the Underlying Action make clear that the procedures are allowed, in the alternative. As defendant Grewals argue, Plaintiff cannot do both.

Plaintiff’s argument in opposition appears to be that the issues are not the same as the elements necessary to establish alter ego are different from the elements necessary for a court to add a judgment debtor. Plaintiff acknowledges that:

To prevail on a motion to add a judgment debtor, the judgment creditor generally must show, by a preponderance of the evidence, that “(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.”

(*Favila v. Pasquarella* (2021) 65 Cal.App.5th 934, 947; see also *Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1106 (*Toho*)—“The ability under section 187 to amend a judgment to add a defendant, thereby imposing liability on the new defendant without trial, requires both (1) that the new party be the alter ego of the old party and (2) that the new party had controlled the litigation, thereby having had the opportunity to litigate, in order to satisfy due process concerns.”)

However, to establish alter ego, a plaintiff need only establish the second and third elements. “[T]wo conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone.” (*Tucker Land Co. v. State of California* (2001) 94 Cal.App.4th 1191, 1202; see also *Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 155). Indeed, the cases setting forth these two elements for alter ego are legion.

Plaintiff suggests the first element identified above from *Favila* is unique to the amendment of a judgment made pursuant to a motion under Code of Civil Procedure section 187 and it was this first element that Judge Pennypacker found lacking and served as the basis for her denial of the motion. As such, Plaintiff contends res judicata/ collateral estoppel does not apply because Judge Pennypacker did not reach the actual merits of whether defendant Grewals were alter egos of CII.

The court finds merit to Plaintiff's position. The requirement that the party to be added to the judgment had control of the underlying litigation is, as *Favila* states, needed to prevail **on a motion** to add a judgment debtor. Likewise, the excerpt from *Toho* cited above seems to impose this requirement in order to "impos[e] liability on the new defendant **without trial**." And in *Lopez*, the court explained:

It does not matter whether the petition alleging Escamilla is an alter ego of the corporation is labeled a complaint or a motion, or whether the petition is assigned a case number different from the underlying action. ***The substantive question is whether Escamilla is, in fact, an alter ego. "The law respects form less than substance."*** (Civ. Code, § 3528). Either a complaint or a motion is sufficient. (*Lopez v. Escamilla* (2020) 48 Cal.App.5th 763, 765; emphasis added).

Thus, since Judge Pennypacker's ruling did not reach the actual merits of the issue of whether defendant Grewals were the alter egos of CII, the doctrine of res judicata/ collateral estoppel does not bar Plaintiff's complaint.

IV. CONCLUSION

Based on the foregoing, defendant Grewals' demurrer to Plaintiffs' complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)], i.e., the Plaintiff's complaint is barred by the doctrine of res judicata and/or collateral estoppel, is **OVERRULED**.

The Court will prepare the formal Order.